

ELECTRIC TRANSMISSION AND POWER LINE FACILITIES ON LCPS PROPERTY

The Loudoun County School Board's primary responsibility is to provide safe learning environments for its students and safe places of employment for its teachers and staff. The purpose of this policy is to protect students, staff, and the surrounding community, and to preserve the intended use of Loudoun County Public Schools (LCPS) property, by prohibiting the future siting of electric transmission and power line facilities on LCPS Property, subject to the exception provided in Section F, while preserving the School Board's authority to accept or deny other options available to the School Board. This policy operates alongside Policy 6350, Wireless Network Facility Colocation.

A. Definitions. For purposes of this policy:

1. "Covered Utility Facility" means any electric transmission, distribution, feeder, collector, or power line of any voltage, together with all associated poles, towers, conductors, guy wires, support structures, substations, switching or transformer equipment, access roads, staging areas, and appurtenant infrastructure and easements.

2. "LCPS Property" means any real property that the School Board owns, leases, controls, or has contracted to acquire, including the airspace above and the subsurface below such property.

3. "School" means any elementary, middle, or high school and any other school operated by or as part of LCPS, including any charter, alternative, or recovery school.

B. Prohibition. Effective immediately, and except as provided in Section F, Covered Utility Facilities are prohibited on LCPS Property. This prohibition applies to:

1. all LCPS Property, regardless of whether a school is located on or near the property; and

2. facilities of any voltage, including lines that cross LCPS Property overhead or underground without any structure resting on the ground.

As a matter of School Board property management and voluntary consent, the School Board will not grant, convey, or consent to any property interest for a Covered Utility Facility on LCPS Property. Approval by another authority of a route, corridor, or certificate of public convenience and necessity does not itself convey a property interest in LCPS Property, constitute School Board consent, or authorize physical occupancy of LCPS Property. Nothing in this policy waives or prejudices any right, defense, or remedy concerning an involuntary acquisition under applicable law.

C. Implementation. The School Board directs the Superintendent or designee to conduct a parcel inventory, evaluate proposed route/easement overlays, and

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memorialize property-specific essential-use findings (e.g., student access, athletic-program use, trail use, outdoor-learning use, riparian/stormwater functions, and the feasibility of relocating such activities/functions) for any LCPS Property that is or may be affected by a proposed Covered Utility Facility.

D. Service-Line Exception. An underground distribution service line that exclusively and directly provides electric service from a transformer to an LCPS facility on the subject property is permitted, where otherwise approved by LCPS. No service line that serves an external mechanical yard, transmission line, or any line that also carries, or is capable of carrying, other electricity to any other customer, or the electric grid generally shall be treated as serving an LCPS facility.

This policy is not intended to cause any interference with routine LCPS electric service, emergency repairs, metering, transformers, temporary construction power, or utility work serving only LCPS facilities.

E. No Administrative Waiver. The prohibition in Section B may not be waived or excepted by the Superintendent, staff, or any committee. It may be excepted only by the full School Board through Section F, or amended through the ordinary policy process.

F. Board Exception. Notwithstanding Section B, the School Board may grant a site-specific exception where it determines, in its sole discretion, that granting the exception is in the best interests of LCPS, its students, staff, and community. The Board retains full latitude to accept, deny, or condition any option available to it in order to make the best decision on behalf of LCPS.

Before granting an exception, the School Board shall:

1. review the parcel-specific record prepared under Section C;
2. consider whether reasonable alternatives avoiding LCPS Property have been evaluated;
3. consider the nature and extent of any impairment to essential school, safety, transportation, athletic, open-space, environmental, or instructional uses; and
4. determine whether proposed conditions are legally and practically enforceable.

Any exception shall be approved by recorded vote at a duly noticed public meeting and supported by written findings explaining why the exception is in the best interests of LCPS. If material impairment remains, the findings shall explain why the exception is the least harmful reasonably achievable alternative and identify enforceable mitigation.

The Board may condition an exception, including by requiring relocation or undergrounding at the utility's or applicant's expense, or independent environmental,

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health, safety, and security studies performed by a third-party vendor approved by the School Board and funded by the utility or applicant; but the Board is not required to impose any condition it finds is not achievable or not in the best interests of LCPS. An exception is wholly discretionary; nothing in this policy entitles any party to an exception, a hearing, or approval, and the Board may grant or decline an exception for any reason it deems to be in the best interests of LCPS. The prohibition in Section B remains in effect for all other purposes.

G. Defense of LCPS Property Rights. LCPS shall not voluntarily grant or convey any interest for a Covered Utility Facility except through a Section F exception, and shall endeavor to defend its property rights against any involuntary attempt to site a Covered Utility Facility on LCPS Property, including through the use of condemnation or eminent domain, to the fullest extent permitted by law. The Superintendent, through counsel for the School Board, shall monitor and, where appropriate, participate in regulatory proceedings, including before the State Corporation Commission (SCC), that could result in the siting of a Covered Utility Facility on or affecting LCPS Property.

While this policy establishes that LCPS will not voluntarily grant, convey, or consent to utility interest unless the full School Board grants a site-specific exception, it does not purport to bind the SCC or other relevant authority regarding such matters.

H. Coordination with Policy 6350.

1. This policy governs Covered Utility Facilities. Policy 6350 governs wireless network facilities. A facility or structure that falls within both policies is subject to both, and the more restrictive provision controls.

2. A facility is permitted on LCPS Property only if it is permitted under both this policy and Policy 6350. Exclusion or silence in one policy does not authorize a facility that the other restricts.

3. Nothing in Policy 6350, including its provision preserving eligibility for facilities approved before October 1, 2024, authorizes any Covered Utility Facility.

Adopted: 7/13/2026

Legal Refs.: Code of Virginia §§ [22.1-71](#), [22.1-79](#), [22.1-125](#), [22.1-126](#), [22.1-127](#), [22.1-253.13:7](#), [22.1-279.8](#), [25.1-102](#), [25.1-205](#), [56-49](#), and [56-46.1](#); Virginia Standards of Accreditation, [8VAC20-132-240](#) (School Facilities and Safety).

ELECTRIC TRANSMISSION AND POWER LINE FACILITIES ON LCPS PROPERTY

Cross Refs.: [Policy 6350](#), Wireless Network Facility Colocation; [Policy 6420](#), Environmental, Health, and Safety; [Policy 7320](#), Staff Health.